
DATA LICENSE AGREEMENT

License No.: CIS-MDL-2022-0031

Effective Date: March 1, 2022

License Term: Two (2) Years

PARTIES

LICENSOR: VendorH Systems Corp.

1600 Market Street, Suite 3200, Philadelphia, PA 19103

LICENSEE: Nexacore Data Services LLC

100 Innovation Drive, Boston, MA 02101

RECITALS

WHEREAS, Licensor is in the business of collecting, compiling, and licensing consumer data, including demographic, behavioral, and contact information for United States and Canadian consumers;

WHEREAS, Licensee desires to obtain a license to access and use certain of Licensor's consumer data assets for permitted business purposes as set forth herein;

WHEREAS, the parties desire to set forth the terms and conditions under which Licensor will grant such license to Licensee;

NOW, THEREFORE, in consideration of the mutual covenants and agreements set forth herein, the parties agree as follows:

Section 1. LICENSE GRANT AND PERMITTED USES

Subject to the terms and conditions of this Agreement, Licensor hereby grants to Licensee a non-exclusive, non-transferable, limited license to access, use, and incorporate the Licensed Data solely for the following permitted purposes:

- (a) MEDIA ACTIVATION: Use of Licensed Data to build and activate audience segments across digital and traditional media channels for Licensee's direct clients, provided that individual-level data is not exposed.
- (b) CONSUMER ANALYTICS: Internal analytical modeling, segmentation, and insights generation to support Licensee's data products and services.
- (c) AUDIENCE SEGMENTATION: Creation of proprietary audience taxonomies and lookalike models derived from Licensed Data for campaign targeting.
- (d) MEASUREMENT: Attribution modeling and campaign effectiveness measurement using Licensed Data as a reference set, provided results are aggregated.

Section 2. GEOGRAPHIC RESTRICTIONS

The license granted herein is restricted to use of Licensed Data for consumers located in North America (United States and Canada) only. Licensee shall not use the Licensed Data in connection with any activities targeting consumers located outside of North America without obtaining a separate written license from Licensor. Licensee shall implement technical and organizational measures to ensure compliance with this geographic restriction.

Section 3. LICENSED DATA DESCRIPTION

Consumer File:	U.S. and Canadian consumer identity, ~310 million records
Data Elements:	Full name, postal address, email (hashed), phone (hashed), age range, gender, household income tier, homeowner flag
Update Cadence:	Full monthly refresh + weekly incremental delta files
Delivery Format:	Parquet or CSV (Licensee's choice), AES-256 encrypted
Delivery Method:	Cloud storage bucket (AWS S3 or GCS), designated by Licensee
History:	24-month rolling lookback included in base license

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Section 4. RESTRICTIONS AND PROHIBITED USES

Licensee expressly agrees NOT to use the Licensed Data for the following:

- (a) NO RAW DATA RESALE: Licensee shall not sell, sublicense, rent, transfer, or otherwise make available the Licensed Data or any substantial derivative thereof to any third party in raw or lightly processed form.
- (b) NO GOVERNMENT USE: Licensee shall not use the Licensed Data in connection with any government contract, law enforcement cooperation, immigration enforcement, or national security application.
- (c) NO FINANCIAL DECISIONING: Licensee shall not use the Licensed Data as a primary factor in any credit, insurance, employment, housing, or other decision subject to the Fair Credit Reporting Act (FCRA) or similar law.

Section 5. LICENSE FEES AND PAYMENT TERMS

Annual License Fee: \$320,000.00 per year

Payment Schedule: Quarterly installments of \$80,000.00 each

Due Dates: March 1, June 1, September 1, December 1

Payment Terms: Net 30 days from invoice date

Late Fee: 1.5% per month on overdue balances

Overage Rate: \$0.003 per record above 310M base universe

Section 6. TERM

This Agreement shall commence on March 1, 2022 and continue for a period of two (2) years through February 28, 2024, unless earlier terminated as provided herein. Following the initial term, this Agreement shall automatically renew for successive one (1) year periods unless either party provides ninety (90) days prior written notice of non-renewal.

Section 7. TERMINATION

Either party may terminate this Agreement upon ninety (90) days prior written notice to the other party. Either party may terminate immediately upon written notice if the other party materially breaches this Agreement and fails to cure such breach within thirty (30) days of written notice. Upon termination, Licensee shall promptly return or certifiably destroy all Licensed Data.

Section 8. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict of law principles. Any disputes shall be resolved by binding arbitration in Wilmington, Delaware.

FOR NEXACORE DATA SERVICES LLC: FOR VENDORH SYSTEMS CORP.:

Signature: _____

Name: Jennifer Rawlings
Title: VP, Data Licensing
Date: February 22, 2022

Signature: _____

Name: Thomas Berkley
Title: SVP, Strategic Partnerships
Date: February 25, 2022

NOTARY ACKNOWLEDGMENT

STATE OF DELAWARE

County of New Castle, ss.

On this ____ day of _____, 2022, before me personally appeared Jennifer Rawlings, known to me or satisfactorily proven to be the person described herein and who executed the foregoing instrument.

Notary Public: _____

My commission expires: _____